

Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure 871.26 And Request for Monetary Sanctions

Plaintiff's motion to compel initial disclosures pursuant to Code of Civil Procedure section 871.26 and request for monetary sanctions is DENIED.

As an initial matter, Code of Civil Procedure section 871.26 provides no mechanism in which a party may move to compel the initial disclosures. Section 871.26 only provides for monetary sanctions and evidentiary sanctions for repeated noncompliance. (See Code Civ. Proc. § 871.26, subd. (j).)

A plain reading of the statute shows the standard discovery procedures, including the compulsion provisions of the Civil Discovery Act, do not apply until mediation is concluded pursuant to Code of Civil Procedure section 871.26, subdivision (d). (See Code Civ. Proc. § 871.26, subd. (e). [“if the case is not resolved at the conclusion of mediation, standard discovery procedures . . . (commencing with Section 2016.010) . . . shall apply . . .”]) The court notes there is no evidence before this court regarding such meditation.

Further, this court finds there was no requirement that the initial document production by Defendant be verified. The verification requirement regarding initial disclosures is pursuant to Code of Civil Procedure section 2016.090. Section 2016.090 is only applicable if there has been a demand by one of the parties for initial disclosures. In contrast, the initial disclosure requirement of section 871.26 is mandatory and contains no verification requirement as found in section 2016.090, subdivision (a)(5).

Last, Defendant has provided admissible evidence that Defendant's mandatory initial document production, pursuant to section 871.26, subdivision (h), has been completed prior to the filing of this motion. Even assuming the February 2026 initial document production was late or incomplete, Defendant has shown good cause why there may have been a failure to fully comply with the document production requirement pursuant to section 871.26, subdivision (b).

Accordingly, Plaintiff's motion and request for monetary sanctions is denied.

Order to Show Cause Re: Dismissal - Notice of Settlement

VACATED. This matter is set for a status conference to confirm deposit of funds into blocked accounts pursuant to the minors' compromises on November 2, 2026, at 8:15 a.m. in Courtroom 8.
